

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chart Riggall	Team: Squad #04	CCRB Case #: 201804923	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 06/19/2018 6:00 PM	Location of Incident: West 204th Street and Post Avenue	18 Mo. SOL 12/19/2019	Precinct: 34
Date/Time CV Reported Wed, 06/20/2018 2:26 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/20/2018 2:26 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Fernando Rodriguez	27943	954282	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Larry Dunn	00334	930082	050 DET
2. POM Pedro Figueroa	14953	950409	034 PCT
3. POM Anthony Presto	04236	954244	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Fernando Rodriguez	Abuse: At West 204th Street and Post Avenue in Manhattan, Police Officer Fernando Rodriguez stopped the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	A . Complainant Uncooperative
B . POM Fernando Rodriguez	Abuse: At West 204th Street and Post Avenue in Manhattan, Police Officer Fernando Rodriguez searched the vehicle in which § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	B . Complainant Uncooperative
C . POM Fernando Rodriguez	Force: Inside the 34th Precinct stationhouse, Police Officer Fernando Rodriguez used physical force against § 87(2)(b)	C . Complainant Uncooperative

Case Summary

On June 20, 2018, § 87(2)(b) filed this complaint with the CCRB by telephone on behalf of himself, his cousin, § 87(2)(b) and § 87(2)(b)'s friend, § 87(2)(b). Intake did not schedule § 87(2)(b) to provide a statement. § 87(2)(b) provided his most recent address, though he said he no longer resided there, and did not have a current address to provide. § 87(2)(b) declined to provide an email or receive text messages.

Between June 22, 2018, and July 24, 2018, six calls were placed to the phone number § 87(2)(b) provided to intake. Each time, the investigator either left a message asking § 87(2)(b) to call back, or reached § 87(2)(b)'s wife, who confirmed that she had given the CCRB's information to § 87(2)(b) and promised to ask him to call back. § 87(2)(b)'s wife did not confirm that she had asked him to contact the CCRB.

On June 26, 2018, the investigator received a call from § 87(2)(b) from a previously unknown number. A partial phone statement was obtained, but the call disconnected before § 87(2)(b) could schedule an interview. The investigation called § 87(2)(b) back immediately and left a voice message requesting a call back. On June 29, 2018, § 87(2)(b) was contacted at this number. § 87(2)(b) said he would be in Florida until July 10, and asked the investigation to contact him when he returned to New York the following week. On July 12, 2018, a second call was placed to § 87(2)(b) at this number, and a voice message was left. On July 16, 2018, a third call was placed to § 87(2)(b) at this number. § 87(2)(b) promised to call back later that afternoon to schedule an appointment, but did not do so. On July 19, 2018, fourth call was placed to § 87(2)(b) and a message was left asking § 87(2)(b) to contact the CCRB. On July 24, 2018, a fifth call was placed to § 87(2)(b). § 87(2)(b) answered, but terminated the call immediately after the investigator identified himself. § 87(2)(b) was immediately called back and a voice message was left advising him that his case could not be kept open indefinitely without a sworn statement and requesting that he contact the CCRB. To date, § 87(2)(b) has not again contacted the CCRB.

On July 12, 2018, Lexis, Yellowpages, and Whitepages searches yielded negative results for § 87(2)(b). On July 13, 2018, a CLEAR search yielded one telephone number for § 87(2)(b). On July 16, 2018, a call was placed to this number, and the respondent stated they did not know § 87(2)(b). On July 16, 2018, a DMV search confirmed the address § 87(2)(b) had provided in his initial complaint. On August 17, 2018 a BADS search confirmed the address § 87(2)(b) had provided in his initial complaint. None of these searches returned a new address.

Between July 12, and July 30, 2018, three letters were mailed to § 87(2)(b) at the address he provided to intake, none of which has been returned as undeliverable.

As of August 16, 2018, a New York City and State DOC search revealed that § 87(2)(b) was not incarcerated.

On June 22, 2018, § 87(2)(b) was contacted by phone at the number § 87(2)(b) provided for him in the initial complaint. § 87(2)(b) said he was at an appointment and asked to be called back the following week. On June 26, 2018, a call was placed to § 87(2)(b). A relative of § 87(2)(b) was reached, and promised to have § 87(2)(b) call the investigation. On June 29, 2018, a third call was placed to § 87(2)(b) and the same relative confirmed that she had passed on the CCRB's information to § 87(2)(b) and that § 87(2)(b) would call on July 2, 2018. § 87(2)(b) did not do so. Between July 9, 2018, and

July 24, 2018, three further calls were placed to § 87(2)(b) and each time voice messages were left. To date, § 87(2)(b) has not returned these calls.

On July 12, 2018, Whitepages and Yellowpages searches yielded negative results. A Lexis search yielded one phone number and an address. On July 12, 2018, a call was placed to the phone number, which was not in service. On July 13, 2018, a CLEAR search yielded three phone numbers. On July 16, 2018, two of these numbers were found not to be in service. Between July 16, 2018, and July 21, 2018, three calls were placed to the third number. Each time, the call rang for more than two minutes without option to leave voice message.

Between July 12, 2018, and July 30, 2018, three letters each were mailed both to the address found in Lexis and the address on § 87(2)(b)'s arrest report, which were not returned as undeliverable. On August 17, 2018 a BADS search confirmed the two known addresses for § 87(2)(b) and did not provide any others. § 87(2)(b) was a victim in prior CCRB case § 87(2)(b) but the complaint did not list any contact information for him not previously obtained.

As of August 16, 2018, a New York City and State DOC search revealed that § 87(2)(b) was not incarcerated.

§ 87(2)(b) did not provide any contact information for § 87(2)(b) in his initial complaint, and during his telephone statement stated that he did not know his contact information. § 87(2)(b)'s address was obtained from his arrest report. The arrest report did not list any other contact information for him, nor did an additional search in BADS return further contact information. § 87(2)(b) has not been a party to any prior CCRB complaints.

On July 12, 2018, Lexis, Yellowpages, and Whitepages yielded negative results for § 87(2)(b). On July 16, 2018, a DMV search confirmed the address listed on § 87(2)(b)'s arrest report. On July 16, 2018, a CLEAR search yielded one phone number. Between July 30, 2018 and August 8, 2018, four calls were placed to this number. During the first call, a message was left asking § 87(2)(b) to contact the CCRB. During the second call, the call was disconnected when the investigator asked to speak with § 87(2)(b). During the third and fourth calls, a respondent stated, "No English," when the investigator asked to speak to § 87(2)(b). On August 14, 2018, Inv. Jenzo Duque placed a call to this number and spoke to the respondent in Spanish, who stated that they did not know § 87(2)(b).

Between July 16, 2018 and July 30, 2018, three letters were mailed to § 87(2)(b). To date, none of these has been returned as undeliverable.

Police documentation of this incident did not include any additional contact information for § 87(2)(b), § 87(2)(b) or § 87(2)(b).

There was body-worn camera footage of the incident, but it was sealed alongside § 87(2)(b)'s arrest. On August 10, 2018, the undersigned and Inv. John Butler viewed BWC footage at 1 Police Plaza and confirmed it did not depict manifest misconduct. A redacted copy of the footage was requested and will be added to the case file upon receipt. There was no other known video footage of this incident.

§ 87(2)(g) it is recommended that this case be closed as **complainants uncooperative.**

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date